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Attorneys for Plaintiff
PIE IN THE SKY BAKERY, LLC

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF EXAMPLETON

PIE IN THE SKY BAKERY, LLC, a California limited liability company, Plaintiff, v. FROSTBYTE REFRIGERATION, INC., a California corporation, Defendant.	Case No. EX-2026-000123 **PLAINTIFF PIE IN THE SKY BAKERY, LLC'S FIRST SET OF INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION TO DEFENDANT FROSTBYTE REFRIGERATION, INC.**

PROPOUNDING PARTY: Plaintiff Pie in the Sky Bakery, LLC
RESPONDING PARTY: Defendant Frostbyte Refrigeration, Inc.
SET NO.: One

Under Code of Civil Procedure sections 2030.010, 2031.010 and 2033.010, Plaintiff requests that Defendant answer the following Interrogatories under oath, produce the following documents, and respond to the following Requests for Admission, in writing, within thirty (30) days of service.

DEFINITIONS

"YOU" and "YOUR" mean Defendant Frostbyte Refrigeration, Inc., its officers, employees, agents and contractors. "AGREEMENT" means the Equipment Supply and Installation Agreement between Pie in the Sky and Frostbyte dated March 3, 2026. "SYSTEM" means the walk-in freezer, EX-40 condensing unit and TempMinder monitoring system that

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YOU supplied and installed at the KITCHEN. "KITCHEN" means Pie in the Sky's commercial kitchen at 300 Sample Street, Sampleville, California. "INCIDENT" means the failure of the SYSTEM on July 4–5, 2026. "DOCUMENT" has the broadest meaning permitted under Evidence Code section 250 and includes electronically stored information. "IDENTIFY," for a person, means to state the person's full name, job title, employer and last known contact information.

INTERROGATORIES

INTERROGATORY NO. 1:

IDENTIFY each person who performed any work on the SYSTEM, including installation, commissioning, service or repair, and for each person state the dates and nature of the work performed.

INTERROGATORY NO. 2:

Describe in detail each step YOU took to configure the TempMinder alert system at the KITCHEN, including the date each step was taken, who took it, and the phone numbers and email addresses entered as alert contacts.

INTERROGATORY NO. 3:

State the refrigerant charge, in pounds and ounces, that YOU placed in the SYSTEM at installation and at the June 10, 2026 service visit.

INTERROGATORY NO. 4:

State all facts supporting YOUR contention that the INCIDENT was caused by a power fluctuation.

INTERROGATORY NO. 5:

IDENTIFY every other customer to whom YOU sold a EX-40 condensing unit between January 1, 2024 and the present that reported a compressor failure within the first year of operation.

INTERROGATORY NO. 6:

Describe every communication YOU had with Pie in the Sky between May 1, 2026 and August 2, 2026 concerning the performance of the SYSTEM.

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INTERROGATORY NO. 7:

State the reason YOU replaced the compressor on August 2, 2026, and IDENTIFY the person who made that decision.

INTERROGATORY NO. 8:

IDENTIFY all DOCUMENTS that record data logged by the TempMinder system at the KITCHEN between May 1, 2026 and July 5, 2026.

INTERROGATORY NO. 9:

State whether YOU contend that any act or omission of Pie in the Sky caused or contributed to the INCIDENT and, if so, state all facts supporting that contention.

INTERROGATORY NO. 10:

IDENTIFY each insurance policy that may provide coverage for the claims in this action, including the insurer, policy number and limits.

REQUESTS FOR PRODUCTION

REQUEST FOR PRODUCTION NO. 1:

All DOCUMENTS relating to the installation and commissioning of the SYSTEM, including work orders, commissioning checklists, and photographs.

REQUEST FOR PRODUCTION NO. 2:

All service reports, technician notes and invoices relating to the June 10, 2026 service visit.

REQUEST FOR PRODUCTION NO. 3:

All data, logs, and alert records generated by the TempMinder system at the KITCHEN from May 1, 2026 to the present.

REQUEST FOR PRODUCTION NO. 4:

All COMMUNICATIONS between YOU and Pie in the Sky concerning the SYSTEM.

REQUEST FOR PRODUCTION NO. 5:

All internal COMMUNICATIONS among YOUR employees concerning the INCIDENT.

REQUEST FOR PRODUCTION NO. 6:

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All DOCUMENTS supporting YOUR contention that the INCIDENT was caused by a power fluctuation.

REQUEST FOR PRODUCTION NO. 7:

The removed compressor and any DOCUMENTS reflecting its inspection, testing or disposal after August 2, 2026.

REQUEST FOR PRODUCTION NO. 8:

All warranty claims made to YOU, or by YOU to the manufacturer, concerning EX-40 condensing units since January 1, 2024.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1:

Admit that YOU did not enter any Pie in the Sky contact information into the TempMinder system before July 4, 2026.

REQUEST FOR ADMISSION NO. 2:

Admit that the TempMinder system at the KITCHEN sent no alert to any Pie in the Sky contact on July 4 or 5, 2026.

REQUEST FOR ADMISSION NO. 3:

Admit that YOUR technician did not record a refrigerant charge on the commissioning checklist for the SYSTEM.

REQUEST FOR ADMISSION NO. 4:

Admit that the SYSTEM is covered by the warranty in Section 9.1 of the AGREEMENT.

REQUEST FOR ADMISSION NO. 5:

Admit that YOU received Pie in the Sky's written notice of the INCIDENT dated July 7, 2026.

REQUEST FOR ADMISSION NO. 6:

Admit that YOU have no DOCUMENTS showing a power fluctuation at the KITCHEN on July 4, 2026.

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Dated: September 15, 2026

SAMPLE & PLACEHOLDER LLP
By: /s/ Penelope Q. Sample
Penelope Q. Sample
Attorneys for Plaintiff
PIE IN THE SKY BAKERY, LLC

CERTIFICATE OF SERVICE

I certify that on September 15, 2026, I served the foregoing document by email on counsel for Defendant, Theodore R. Example, at texample@example.com.

/s/ Penelope Q. Sample

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